EVIDENTIARY REPORT
POLITICAL INFLUENCE, PROMESA, AND FEDERAL AGENCY CONDUCT

Documentary Basis for Investigating Whether Powerful Financial Contributors and Congressional Gatekeepers Shaped PROMESA and Influenced the Federal Government's Treatment of PREPA-Related Evidence

Prepared August 2026

Evidentiary posture: This report supports an investigative hypothesis. It does not state that political influence, bribery, conspiracy, or agency misconduct has been adjudicated.

Executive Summary

The central allegation examined here is not merely that Wall Street contributed money to politicians who later voted for PROMESA. The more serious theory is that powerful financial institutions with major exposure to Puerto Rico debt had strong economic incentives to preserve a restructuring framework favorable to institutional financial interests; that those institutions and the broader financial sector were major political donors and lobbyists; that congressional leaders and legislative gatekeepers receiving substantial financial-sector support organized and advanced PROMESA; and that Treasury, SEC, and DOJ possessed materially relevant PREPA information that was not fully reflected in the public congressional narrative and was later the subject of disputed representations in federal litigation.

The currently assembled record supports investigation of that theory because the separate pieces are no longer speculative in isolation. Treasury was directly involved in the congressional development of PROMESA. Treasury told the House Natural Resources Committee in February 2016 that it looked forward to working with Congress on a solution and testified on April 13 that it would continue working with committee staff to refine the legislation. The House committee later described Treasury testimony as providing the rationale for PROMESA's restructuring provisions.

At the same time, records preserved in the user's evidentiary archive describe a 2013 Treasury-to-SEC analysis addressing PREPA's financial condition, debt-service coverage, receivables, subsidies, liquidity, and reliance on continued borrowing. Later-produced SEC records document Enforcement Matter B-02949 involving PREPA's 2013 bonds, whistleblower processing, requests for financial analysis, investigative routing and preservation, and SEC communications with DOJ Antitrust personnel.

The resulting investigative question is therefore concrete: when Treasury officials were helping Congress design PROMESA and publicly characterizing Puerto Rico's debt crisis, what PREPA-specific information was available inside Treasury, SEC, DOJ, and interagency channels—and was that information transmitted to the congressional officials making the legislative decisions?

Campaign-finance and lobbying records establish motive and access, not corrupt intent. The financial sector spent at extraordinary scale in the 2015–2016 election cycle. Key PROMESA actors, including Speaker Paul Ryan and Senator Charles Schumer, were among the largest financial-sector recipients. Schumer entered the PROMESA period with longstanding donor concentrations from Goldman Sachs, Citigroup, and JPMorgan Chase and also operated substantial Senate fundraising and redistribution structures. SIFMA's Asset Management Group expressly supported PROMESA, and other financially interested actors engaged in Puerto Rico-related lobbying.

The evidence does not yet establish the final causal bridge: a communication, instruction, agreement, or other proof showing that a congressional actor directed Treasury, SEC, or DOJ to suppress, withhold, mischaracterize, or otherwise manage PREPA-related evidence for the purpose of protecting financial contributors or preserving PROMESA. That missing evidence is precisely what congressional subpoenas, inspector-general review, agency email searches, briefing-book production, and testimony could test.

Accordingly, this report concludes that the political-influence theory has a substantial factual foundation sufficient to warrant focused investigation. It should be presented as an evidence-supported hypothesis of motive, access, governmental knowledge, institutional coordination, legislative opportunity, and potentially protective downstream conduct—not as an already-proved quid pro quo.

The Investigative Theory in One Sentence

Whether powerful financial interests with exposure to Puerto Rico debt used political influence with congressional gatekeepers to shape PROMESA and whether that political environment affected what Treasury, SEC, and DOJ disclosed, investigated, litigated, or communicated concerning PREPA-related evidence.

Key PROMESA Political Gatekeepers and the Money Around Them

Why this table matters. The influence theory depends on identifying the people who actually had power over PROMESA's drafting, committee process, floor scheduling, party votes, and Senate passage—not merely listing large congressional recipients. The figures below therefore pair each gatekeeper's formal role with the strongest contribution figure presently verified.

Political actor	PROMESA role	Vote	Verified financial support	What the number measures	Why it matters
Paul Ryan (R-WI)	Speaker of the House; controlled House floor agenda; supported PROMESA	AYE	$5,727,069	2015–16 financial-sector contributions (AFR/CRP)	Largest House financial-sector recipient identified by AFR; a top institutional gatekeeper.
Kevin McCarthy (R-CA)	House Majority Leader; leadership vote-counting and floor strategy	AYE	$3,397,980	2015–16 financial-sector contributions (AFR/CRP)	Second-largest House recipient in AFR's financial-sector ranking; central to majority leadership.
Sean Duffy (R-WI)	Sponsor of H.R. 5278 (PROMESA)	AYE	$204,175	121 finance-related PAC donations reviewed from 2015–16 filings	Direct legislative sponsor. The finance-PAC pool included Goldman Sachs, Wells Fargo, Bank of America, Citigroup and other financial companies.
Rob Bishop (R-UT)	Chair, House Natural Resources Committee; original cosponsor; committee gatekeeper	AYE	$1,012,573 total 2016-cycle receipts; 92.6% of donations reported as out-of-state	Total campaign receipts / geographic concentration, not a finance-sector subtotal	Shows unusually high dependence on outside interests while chairing the committee that developed PROMESA. Finance-specific subtotal not yet isolated.
Nancy Pelosi (D-CA)	House Democratic Leader; helped shape Democratic support	AYE	$104,210 to campaign + $58,000 to PAC to the Future = $162,210	2016 securities/investment + commercial-bank support to campaign and leadership PAC	Democratic House gatekeeper with documented Wall Street support; useful bipartisan comparison.
Mitch McConnell (R-KY)	Senate Majority Leader; controlled floor procedure and motion to concur	YEA	$2,154,065 total 2016 receipts; $657,800 from PACs; $441,100 from corporate PACs	Campaign/PAC totals, not a finance-sector-only subtotal	Formal Senate gatekeeper. His committee later transferred $170,000 in two distinct September 2016 payments to the NRSC.
Harry Reid (D-NV)	Senate Minority Leader at time of passage	YEA	$258,868 authorized-committee receipts in 2015–16	Total authorized-committee receipts; finance-specific subtotal not isolated here	Formal Democratic Senate leader. Included to separate actual 2016 leadership from Schumer's financial-network role.

Political actor	PROMESA role	Vote	Verified financial support	What the number measures	Why it matters
Charles Schumer (D-NY)	Senior Democratic strategist; incoming Democratic leader; major Senate fundraising hub	YEA	$5,345,563 financial-sector support in 2015–16; historical Goldman $543k, Citi $484k, JPMorgan $365k	AFR/CRP cycle total plus pre-PROMESA organization-linked donor history	Not the formal minority leader in June 2016, but the strongest documented intersection of Wall Street donor concentration, Senate influence, and redistribution capacity.

What this table shows. The financial-support pattern is not confined to one party. The two most powerful House Republicans in the PROMESA process (Ryan and McCarthy) were among the largest House financial-sector recipients; the bill sponsor Duffy received more than $204,000 from finance-related PACs; Pelosi received documented securities/bank support; and Schumer was one of the largest Senate financial-sector recipients with unusually deep historical ties to Goldman Sachs, Citigroup, and JPMorgan Chase. McConnell and Reid must be analyzed primarily as formal Senate gatekeepers because the currently verified 2015–16 numbers for them are not finance-sector-specific.

Critical evidentiary caution. These amounts establish political financial relationships and access. They do not establish that any contribution purchased a PROMESA vote, that a contributor dictated statutory language, or that a politician ordered Treasury, SEC, or DOJ to take a particular action. The report's causal theory depends on connecting these relationships to Treasury/agency communications, congressional briefing records, or other evidence of direction.

Key-Player Money Flow Relevant to the Influence Theory

Financial source / network	Political recipient or vehicle	Verified amount	Connection to PROMESA theory
Financial sector broadly	Paul Ryan	$5.727M (2015–16)	House Speaker / floor gatekeeper
Financial sector broadly	Kevin McCarthy	$3.398M (2015–16)	House majority leadership
Finance-related PACs	Sean Duffy	$204,175	Sponsor of H.R. 5278
Securities + commercial banks	Nancy Pelosi campaign + leadership PAC	$162,210	House Democratic leadership
Financial sector broadly	Charles Schumer	$5.346M (2015–16)	Senior Senate power broker / incoming leader
Goldman + Citigroup + JPMorgan employees/PACs	Charles Schumer	$1.392M combined through 2014	Longstanding PREPA-bank-linked donor concentration
Friends of Schumer	DSCC	$3.0M in distinct Sept. 2016 transfers	Post-enactment redistribution capacity
McConnell Senate Committee	NRSC	$170,000 in distinct Sept. 2016 transfers	Post-enactment Republican redistribution comparison

Interpretive significance. The gatekeepers who could move PROMESA were not financially isolated from the industries affected by Puerto Rico debt policy. The report should therefore ask whether bank, securities, hedge-fund, insurer, and counsel lobbying contacts with these gatekeepers were followed by Treasury, SEC, or DOJ actions concerning the same PREPA issues.

Sources for Key-Player Contribution Figures

- Americans for Financial Reform (2017), Wall Street Lobby and Campaign Cash Tops $2 Billion for 2016 Elections — Ryan, McCarthy, Schumer and other financial-sector recipient totals.

- WSAW NewsChannel 7 (Oct. 26, 2016), review of FEC records for Sean Duffy — 121 finance-related PAC donations totaling $204,175, including Goldman Sachs, Wells Fargo, Bank of America and Citigroup.
- FactCheck.org (Feb. 2017), Pelosi's False 'Wall Street' Denial — $83,280 securities/investment + $20,930 commercial-bank support to Pelosi's campaign; $44,500 + $13,500 to PAC to the Future.
- Center for Public Integrity (Dec. 2015), Schumer's road to the top greased by donations to colleagues — Goldman $543,000; Citigroup $484,000; JPMorgan $365,000; securities/investment >$10.4M through 2014.
- CampaignMoney/FEC-derived 2016 McConnell records — $2.154M total receipts, $657,800 PAC receipts, $441,100 corporate PAC receipts.
- FEC candidate record for Harry Reid — $258,868 authorized-committee receipts during 2015–16.
- Center for Responsive Politics reporting via KUER — 92.6% of Rob Bishop's 2016-cycle donations came from outside Utah; FEC total receipts approximately $1.013M for the cycle.

Whistleblower Notice to Government and Congress

Verified Pre-Vote Fax Notice Campaign

Documentary verification from the uploaded confirmation log. The fax log contains 719 transmission records, including 621 successful transmissions, spanning February 1, 2016 through February 23, 2016. The campaign therefore began more than three months before H.R. 5278 was introduced on May 18, 2016 and more than four months before the June House and Senate votes.

Key-player confirmations. The log contains successful pre-PROMESA transmissions to Kevin McCarthy, Paul Ryan, Sean Duffy, Rob Bishop, Mitch McConnell, Harry Reid, and Charles Schumer. These are not generic Senate or House mailing-list assertions; the file identifies recipient names, fax numbers, dates, times, page counts, transmission status, and confirmation IDs.

Key player	First successful fax	Time	Successful transmissions	Pages shown in successes	Confirmation ID(s)
Paul Ryan	2/3/2016	7:20:58 PM	1	11	77264505
Kevin McCarthy	2/1/2016	9:39:12 PM	1	8	76278617
Sean Duffy	2/3/2016	7:34:05 PM	1	11	77265644
Rob Bishop	2/3/2016	5:19:20 PM	3	11, 8, 1	77247983, 83909081, 84430553
Nancy Pelosi	—	—	0	—	Not located in this file
Mitch McConnell	2/4/2016	8:22:01 AM	1	3	77432748
Harry Reid	2/3/2016	11:07:18 PM	3	3, 3, 3	77307592, 77307842, 77445699
Charles Schumer	2/3/2016	11:12:49 PM	7	3, 3, 3, 3, 3, 3, 3	77308228, 77308471, 77308603, 77308764, 77308944, 77309026, 77453373

Recipient-specific notice significance. For the named officials appearing in the log, the earlier report's statement that pre-vote receipt was merely hypothetical should be revised. The transmission evidence now supports documented pre-vote delivery to those offices. The remaining evidentiary question is content: each fax confirmation should be paired with its corresponding cover sheet or attachment set to establish exactly which PREPA evidence was delivered in that transmission.

Date clarification. The uploaded file shows a campaign beginning February 1, 2016, but not every key player was reached on February 1. McCarthy was successfully reached February 1; Ryan, Duffy, Bishop, Reid, and Schumer were reached beginning February 3; McConnell was reached February 4. Pelosi does not appear in this particular file.

Why this matters to the report's central theory. If the corresponding fax packets contain the PREPA bond-fraud warnings, HR 1049 material, whistleblower allegations, Treasury/SEC evidence, or related documentation described in the evidentiary record, then several officials who later exercised direct legislative power over PROMESA had documented notice months before passage. They nonetheless later sponsored, scheduled, managed, or voted for the legislation. That sequence would not prove corrupt intent or that they accepted the allegations as true, but it would materially strengthen the question whether PROMESA's architects proceeded despite specific warnings that the debt being restructured could involve unresolved issuance, disclosure, or fraud issues.

Pre-Vote Emails — FOIA / Archival Record Required

Current evidentiary status. Lawless reports that the same congressional offices received numerous emails before the PROMESA votes. Those emails may be highly probative because they can establish both recipient and subject matter. The complete pre-vote email archive has not yet been reconstructed in the present record.

Required next step. FOIA requests should be directed to Treasury, SEC, DOJ, and other executive-branch agencies for communications with the named members of Congress and their staffs concerning PREPA, Puerto Rico bonds, Richard Lawless, B-02949, HR 1049, PROMESA, debt-service coverage, receivables, subsidies, solvency, continuing disclosure, and related whistleblower or investigative material. Because Congress is not subject to FOIA, congressional-side proof should also be pursued through archival collections, office records, committee records, preserved email accounts, and voluntary or compulsory congressional production where available.

Report treatment. Until the emails are recovered, the key-player tables should state: "FOIA / archival records request needed to establish pre-vote email receipt and contents." The verified February 2016 fax confirmations remain independent proof of pre-vote delivery to the offices identified in the fax log.

Why notice matters. The political-influence theory becomes materially stronger if the relevant officials were not merely recipients of financial-sector support but had also been placed on notice of the competing PREPA bond-fraud evidence. Notice does not prove agreement or corrupt intent, but it narrows the innocent-explanation question: what did the recipient know, when did the recipient know it, and what did the recipient do after receiving it?

Pre-PROMESA evidentiary notice. The evidentiary archive states that Richard R. Lawless made whistleblower submissions concerning PREPA in 2015–2016 and that federal agencies accumulated related material before PROMESA. The record includes SEC whistleblower processing, PREPA Matter B-02949, SEC investigative subpoenas, Treasury–SEC communications, and the Puerto Rico House HR 1049 report. Lawless has also represented in court filings that he used emails and overnight-delivery packages to transmit evidence to government officials. The currently reviewed archive, however, does not yet contain delivery receipts or pre-June-2016 email headers proving receipt by every individual PROMESA gatekeeper named in this report. Accordingly, this report treats individual pre-vote congressional receipt as a document-verification issue rather than an established fact for every named member.

Later congressional notice is independently significant. The archive contains a sworn/court-filed representation that Lawless sent every U.S. Senator and their chiefs of staff a copy of his book and, using Federal Express/UPS, sent every U.S. Senator the Puerto Rico report and links to his video describing the alleged offenses and participating banks. That evidence supports later notice to the Senate, but not notice before the June 2016 PROMESA vote unless the underlying shipment records establish an earlier date.

Chronology of the book. Capitol Hill's Criminal Underground was published in 2019. It therefore could not have been received by members of Congress before their June 2016 PROMESA votes. Distribution of the book is relevant to post-PROMESA notice, continuing congressional inaction, later legislation, oversight, and the persistence of the challenged governmental narrative; it cannot be used as evidence that a member knowingly voted for PROMESA after reading the published book.

Notice event	Evidence presently located	Timing significance	How the report uses it
Whistleblower / PREPA evidence to federal agencies	SEC B-02949, whistleblower processing, investigative routing, subpoenas, Treasury–SEC and SEC–DOJ records	Predates / overlaps PROMESA	Establishes Executive-branch knowledge; central to what Treasury may have known while assisting Congress.
Emails and overnight packages to officials	Lawless court filings and later correspondence describe repeated emails, faxes and Federal Express packages	Potentially pre- and post-PROMESA; recipient/date proof must be matched	Supports a notice hypothesis; do not attribute receipt to a named gatekeeper without delivery/email proof.
Puerto Rico report + video to U.S. Senators	Court-filed representation states Federal Express/UPS receipts verify distribution to every U.S. Senator	Date of underlying receipts must be established for pre-vote use	Potentially powerful notice evidence once shipment dates and recipients are indexed.
Capitol Hill's Criminal Underground	Court-filed representation states copies were sent to every U.S. Senator; later correspondence says Senate and House Judiciary received copies	Post-2019 only	Evidence of later notice and continued inaction; not evidence of knowledge before the 2016 PROMESA vote.

The strongest version of the notice argument. If the archived email headers and FedEx/UPS receipts can be matched to Ryan, McCarthy, Duffy, Bishop, Pelosi, McConnell, Reid, Schumer, or their senior staff before the relevant House or Senate vote, the report can move those individuals from 'politically connected gatekeepers who may have had access to the evidence' to 'gatekeepers with documented pre-vote notice.' That is a materially stronger evidentiary category and should be supported recipient-by-recipient.

Notice Matrix for the Key Players

Key player	PROMESA role	Vote	Pre-vote fax notice	Pre-vote email notice / next step
Paul Ryan	Speaker	AYE	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish complete pre-vote email receipt and contents
Kevin McCarthy	Majority Leader	AYE	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish complete pre-vote email receipt and contents
Sean Duffy	H.R. 5278 sponsor	AYE	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish

				complete pre-vote email receipt and contents
Rob Bishop	Natural Resources chair	AYE	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish complete pre-vote email receipt and contents
Nancy Pelosi	House Democratic Leader	AYE	Not located in this fax-confirmation file	FOIA / archival records request needed to establish pre-vote email receipt and contents
Mitch McConnell	Senate Majority Leader	YEA	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish complete pre-vote email receipt and contents
Harry Reid	Senate Minority Leader	YEA	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish complete pre-vote email receipt and contents
Charles Schumer	Senior Democratic power broker	YEA	CONFIRMED — successful Feb. 2016 fax transmission	FOIA / archival records request needed to establish complete pre-vote email receipt and contents

1. The Evidentiary Chain

Element	Documented evidence	What it supports	What remains unproved
1. Financial motive	Banks, securities firms, funds and insurers had large economic interests in Puerto Rico debt and restructuring.	A reason to seek a federal framework protecting orderly restructuring, creditor priorities, and market stability.	That any specific firm sought unlawful protection.

2. Political leverage	Financial-sector contributions and lobbying were exceptionally large; major PROMESA actors were significant recipients.	Access, relationships, and capacity to influence legislative priorities.	That contributions were conditioned on a vote or governmental act.
3. Legislative control	Ryan, Bishop, Duffy, McConnell and other gatekeepers controlled sponsorship, committee process, floor access, or passage; Treasury worked directly with the committee.	Opportunity for politically powerful actors and Treasury to shape the statutory framework.	That a particular donor dictated statutory language.
4. Executive-branch knowledge	2013 Treasury-SEC analysis; SEC B-02949; SEC subpoenas; whistleblower processing; SEC-DOJ communications.	Material PREPA concerns existed inside the federal government before/during PROMESA.	Exactly which Treasury/Congress officials saw each record.
5. Public/congressional narrative	Treasury's public testimony emphasized unsustainable debt, disorderly finances, restructuring need, and urgency.	Congress received an Administration-backed case for restructuring and oversight.	Whether materially contrary PREPA investigative information was omitted intentionally.
6. Later government conduct	Later-produced records are alleged to conflict with categorical factual positions in multiple federal cases; DOJ counsel had notice of some SEC-DOJ material by 2022.	Potential institutional interest in preserving prior factual/legal positions and avoiding disruptive merits discovery.	Knowing falsity, corrupt purpose, or political direction.

2. Financial Interests and Political Motive

The financial motive portion of the theory is straightforward: institutions underwriting, trading, lending against, insuring, or holding Puerto Rico debt had substantial exposure to how Congress and federal regulators characterized the debt crisis and how a restructuring regime would treat creditors.

The user's docketed bankruptcy-fraud exhibit places the political-spending theory directly into the PROMESA evidentiary record and cites the Americans for Financial Reform finding that the financial sector reported $1,201,417,199 in 2015–2016 campaign contributions, with total financial-sector lobbying and contributions exceeding $2 billion for the cycle.

Selected political-finance fact	**Amount / fact**	**Relevance**
Financial-sector federal contributions, 2015–16	$1.201 billion	Demonstrates exceptional political-finance capacity.
Financial-sector federal lobbying, 2015–16	approximately $898 million	Demonstrates extensive policy-access effort.
Paul Ryan financial-sector support	approximately $5.727 million	Speaker and major House gatekeeper; voted AYE.
Chuck Schumer financial-sector support	approximately $5.346 million	Senate leadership; voted YEA; major fundraising hub.
Kevin McCarthy financial-sector support	approximately $3.398 million	House Majority Leader; voted AYE.
Schumer historical Goldman-linked giving	$543,000 through 2014	Longstanding relationship with a PREPA-connected major bank.
Schumer historical Citigroup-linked giving	$484,000 through 2014	Longstanding relationship with a PREPA-connected major bank.
Schumer historical JPMorgan-linked giving	$365,000 through 2014	Longstanding relationship with a PREPA-connected major bank.
Schumer securities/investment support	more than $10.4 million through 2014	Shows unusually deep financial-sector donor concentration.

These figures do not prove that the money was paid for PROMESA. They establish that the relevant political actors operated within a political-finance environment in which major financial institutions and securities interests were exceptionally important donors and lobbying participants.

3. Schumer as a Political-Finance Hub

Schumer is relevant to the influence theory not because the current record proves he received the largest direct PAC check from every PREPA bank, but because of the combination of longstanding bank-linked donor concentration, Senate leadership, fundraising capacity, and redistribution.

Schumer-related evidence	Amount / date	Investigative significance
Goldman Sachs employees/PACs	$543,000 through 2014	Top organizational donor source identified by pre-PROMESA research.
Citigroup employees/PACs	$484,000 through 2014	Second identified organizational source.
JPMorgan Chase employees/PACs	$365,000 through 2014	Third identified organizational source.
Securities/investment interests	more than $10.4 million through 2014	Shows longstanding sector concentration.
Schumer Committee for the Majority	formed June 15, 2016; $2.641 million receipts	Joint fundraising structure created 14 days before Senate final vote.
Friends of Schumer -> DSCC	$2 million Sept. 7, 2016; $1 million Sept. 20, 2016	Demonstrates multi-million-dollar redistribution capacity after enactment.

The post-vote transfers cannot establish pre-vote inducement. They do, however, demonstrate that Schumer possessed substantial capacity to aggregate and redistribute political resources across the Senate campaign system.

4. Financial Interests Were Also Lobbying Congress

Campaign contributions are more probative when viewed alongside contemporaneous lobbying and formal advocacy.

- SIFMA Asset Management Group submitted material into the congressional hearing record and publicly supported H.R. 5278 during the active legislative period.
- A 2015 federal lobbying disclosure described DCI Group lobbying on behalf of BlueMountain Capital Management concerning a financial dispute between BlueMountain and the Government of Puerto Rico.
- Assured Guaranty later filed lobbying disclosures expressly identifying Puerto Rico bankruptcy issues and PROMESA, demonstrating continuing creditor-side engagement with Congress and the federal restructuring framework.

These records establish that financially interested actors were not merely making campaign contributions; some were actively attempting to affect federal policy concerning Puerto Rico.

5. Treasury Was a Central Participant in the Creation of PROMESA

This is a critical link in the influence theory. Treasury was not simply an agency that commented after Congress acted.

- On February 25, 2016, Treasury Counselor Antonio Weiss told the House Natural Resources Committee that Treasury looked forward to working with Congress on a responsible solution to Puerto Rico's crisis.
- On April 13, 2016, Weiss testified on the PROMESA discussion draft and stated that Treasury looked forward to continuing to work with the Committee and staff to refine the legislation immediately following the hearing.
- The House Natural Resources Committee's later report stated that Treasury testimony concerning Puerto Rico's unsustainable debt and disorderly finances provided the basis for the restructuring mechanisms in Titles III and VI.
- Secretary Jacob Lew publicly backed the legislation during May and June 2016 and urged Congress to enact the restructuring and oversight framework.

Investigative significance: If Treasury simultaneously possessed or had access to materially different PREPA-specific information—especially information concerning offering disclosures, solvency, debt-service coverage, receivables, subsidies, or possible securities-law violations—then Treasury briefing files and interagency communications become central evidence.

5A. Potential Conflict No. 1 — Secretary Jack Lew and Citigroup/Citibank

Documented relationship. Before returning to government, Jacob J. Lew served as a senior Citigroup executive, including as Managing Director and Chief Operating Officer of Citi Global Wealth Management and later Managing Director and COO of Citi Alternative Investments. He subsequently became Treasury Secretary while Treasury was a principal Administration architect and advocate of the federal Puerto Rico response that became PROMESA.

Schumer–Lew relationship and confirmation sponsorship. The official 2013 Senate Finance Committee record shows Senator Charles Schumer personally introducing Jacob Lew for confirmation as Treasury Secretary. Schumer described Lew as a friend of approximately three decades and endorsed the nomination 'wholeheartedly and without any reservation.' Schumer had also supported Lew's earlier confirmation as OMB Director. President Obama formally selected Lew for Treasury; the records reviewed do not establish that Schumer originated the recommendation. The documented point is that Schumer was a longstanding political ally and prominent Senate sponsor of Lew's elevation to Treasury.

Why the relationship matters to the conflict analysis. Schumer was simultaneously a major recipient of financial-sector political support, with longstanding donor concentrations associated with Goldman Sachs, Citigroup, and JPMorgan Chase. Lew arrived at Treasury after serving as a senior Citigroup executive. Treasury under Lew then became a principal Administration architect and advocate of PROMESA, legislation materially affecting Puerto Rico debt markets in which Citigroup/Citibank had been a recurring PREPA underwriter, lender, and creditor. These facts do not establish that Schumer caused Lew to act for Citi; they identify a relationship and influence pathway that should be tested through communications and ethics records.

Parallel Schumer–White relationship. The same 2013 appointment period contains a parallel documented relationship at the SEC. Schumer formally introduced Mary Jo White at her Senate Banking Committee confirmation hearing and strongly endorsed her nomination. White became SEC Chair on April 10, 2013. Approximately four months later, Treasury personnel transmitted the 22-page PREPA/Puerto Rico communication to SEC personnel. White had come to the SEC from Debevoise & Plimpton, where her disclosed Wall Street clients included JPMorgan Chase. The resulting pattern warrants examination of Schumer's communications with both Lew/Treasury and White/SEC concerning Puerto Rico, PREPA, the underwriting banks, B-02949, whistleblower evidence, and PROMESA.

Citigroup's PREPA exposure was not incidental. PREPA offering documents identify Citigroup repeatedly as an underwriter. The 2012 PREPA Power Revenue Bond offering lists Citigroup among the underwriting syndicate. The 2013A Official Statement identifies Citigroup as an underwriter and separately discloses that Citibank, N.A., a Citigroup affiliate, maintained a $250 million revolving line of credit to PREPA for fuel and purchased power, with $249.1 million outstanding as of June 30, 2013. Independent energy-finance research later reported that Citigroup participated in PREPA's underwriting team for every PREPA bond issuance from 2010 through 2013.

Investigative question. When Treasury under Secretary Lew helped formulate and advocate PROMESA, did Treasury ethics officials, congressional committees, or other decision-makers evaluate or disclose Lew's former senior relationship with a financial institution that had served as a recurring PREPA underwriter, lender, and creditor? The relationship is not proof that Lew acted for Citi; it is a conflict/recusal/disclosure issue that warrants documentary review.

5A-1. Emerging Schumer–Treasury–SEC Appointment and Influence Pattern

The records now identify a recurring institutional pattern rather than a single isolated relationship: Schumer had major Wall Street financial support; Schumer personally and strongly sponsored Lew's Treasury confirmation; Lew had recently been a senior Citigroup executive; Schumer also personally introduced and strongly supported Mary Jo White for SEC Chair; White came from a Wall Street defense practice that included JPMorgan; Treasury and SEC then possessed and exchanged PREPA-related information during 2013; Treasury later led the Administration's PROMESA effort; and Schumer voted for PROMESA. Each link is independently lawful and does not establish corruption. Taken together, however, they create a focused basis for investigating whether political relationships, former-client conflicts, and financial-sector interests affected the handling or disclosure of PREPA evidence.

Records needed to test the pattern. Executive-branch FOIA and inspector-general searches should seek all communications from 2013 through June 2016 between Schumer or his staff and Lew, White, Weiss, Treasury Domestic Finance, SEC leadership, SEC Enforcement, and DOJ concerning Puerto Rico, PREPA, Citigroup, JPMorgan, Goldman Sachs, Morgan Stanley, B-02949, Richard Lawless, HR 1049, the 2013 Treasury-SEC email, and PROMESA.

5B. Potential Conflict No. 2 — Antonio Weiss, Stephen Campbell, and Lazard

Antonio Weiss. President Obama nominated Weiss, then Global Head of Investment Banking at Lazard, to become Treasury Under Secretary for Domestic Finance. After substantial Senate opposition focused in part on Wall Street influence and his Lazard background, Weiss withdrew from the Senate-confirmed nomination and instead became Counselor to Secretary Lew, a position that did not require Senate confirmation.

Puerto Rico responsibility. Weiss became a central Treasury official on Puerto Rico. Treasury's April 13, 2016 PROMESA testimony shows Weiss appearing as the Department's principal witness and telling the House Natural Resources Committee that significant progress had been made designing the bill and that Treasury would continue working with the Committee and staff to further refine the legislation.

Second former Lazard banker. Treasury added Stephen Campbell, another former Lazard investment banker, to the Puerto Rico debt-crisis team in June 2015. The evidence presently located does not show that Campbell was himself nominated for and rejected from a Senate-confirmed post; the confirmation controversy applies to Weiss.

Lazard's Puerto Rico financial interests. Contemporaneous 2015 conflict-of-interest research reported that Lazard Asset Management had direct Puerto Rico tax-exempt bond exposure as recently as 2014 and that a Lazard-managed fund-of-funds invested in BlueMountain Capital's Credit Alternatives Master Fund and Pine River Capital's Fixed Income Master Fund. BlueMountain was reported to hold approximately $400 million of Puerto Rico bonds, while Pine River was reported to have purchased Puerto Rico debt as early as 2011. Lazard Asset Management Securities was also registered as a broker-dealer in Puerto Rico. These reports prompted a public recusal campaign against Weiss in September 2015.

Investigative question. What Puerto Rico securities, funds, creditor interests, advisory relationships, or trading exposures did Lazard and its affiliates hold while two former Lazard bankers were working inside Treasury on Puerto Rico policy and Weiss was helping Congress design PROMESA? The answer requires fund holdings, trading records, ethics disclosures, recusal records, and Treasury communications—not inference alone.

5C. Material Omission Question — What Treasury Presented to Congress

The public legislative record. Treasury's public testimony emphasized Puerto Rico's unsustainable debt, lack of market access, creditor litigation, fiscal disorder, and the need for restructuring plus oversight. The House committee report expressly relied on Treasury testimony as support for the restructuring mechanisms ultimately embodied in Titles III and VI.

The omitted-information issue. Richard Lawless reports that he reviewed the PROMESA hearing transcripts and found no disclosure by Secretary Lew, Weiss, or other participants of HR 1049, SEC PREPA Matter B-02949, the SEC investigative subpoenas, the whistleblower record, or the 2013 Treasury-SEC PREPA communication. The official April 13, 2016 hearing transcript reviewed for this report likewise presents Treasury's restructuring case without identifying those specific records. A complete omission finding across every PROMESA hearing should be supported by a transcript-by-transcript index, which can be appended to this report.

5D. Final Treasury Exhibit — The 22-Page August 2, 2013 Treasury-to-SEC Email

Source and authorship. The FOIA-produced record in the evidentiary archive is a 22-page August 2, 2013 Treasury-to-SEC communication. The opening email is from Adam Chepenik of the U.S. Treasury Department. Contemporary and later professional biographies identify Chepenik as a Treasury Senior Policy Advisor and later Deputy Director of the Office of State and Local Finance, advising the Secretary, the Under Secretary for Domestic Finance, and the Assistant Secretary for Financial Markets on distressed municipalities including Puerto Rico.

What the record shows. The email was sent before the 2013 PREPA bond issuance and transmitted market and transaction concerns to SEC personnel. The archive quotes Chepenik apologizing for the length of the email, noting accelerating municipal-market outflows and volatility, and directing the SEC to materials describing what Bloomberg, Reuters, and rating agencies were saying about the transaction. The larger 22-page record is cited in the docketed evidentiary materials as Treasury personnel actively identifying and analyzing PREPA/Puerto Rico bond risks rather than merely receiving information from the SEC.

Why its origin matters. Chepenik was not an outside commentator. He was a Treasury policy official working within the domestic-finance structure that advised senior Treasury leadership. Later accounts identify Chepenik as playing a significant role in Treasury's Puerto Rico response and in technical assistance to Congress during PROMESA. This creates a direct institutional continuity: a Treasury official involved in PREPA analysis in 2013 later participated in the Treasury apparatus that helped develop the federal Puerto Rico response.

Congressional omission question. The central issue is not whether the 22-page email itself proves securities fraud. It is whether the materially specific PREPA risk analysis already circulating between Treasury and the SEC was disclosed to Congress when Treasury later helped frame the factual basis for PROMESA. Lawless states that his review of the hearing transcripts found no such disclosure. The official April 2016 hearing record reviewed for this report does not identify the 22-page email, Chepenik's 2013 PREPA analysis, B-02949, HR 1049, or the whistleblower materials in Treasury's presentation.

Investigative significance. If Treasury's congressional briefing books and draft testimony confirm that the 2013 PREPA analysis and related SEC investigative information were available internally but omitted from the legislative presentation, investigators should determine who made that decision, whether the omission was considered material, and whether conflicts involving Citigroup, Lazard, creditor interests, or other financial stakeholders influenced the scope of what Congress was told.

Treasury Conflict-and-Omission Matrix

Treasury actor / institution	Financial relationship	PROMESA role	Information / interest potentially omitted	Core investigative question
Jack Lew	Former senior Citigroup executive	Treasury Secretary; Administration advocate	Citi's repeated PREPA underwriting/lending/creditor role	Was conflict evaluated, disclosed, or recused?
Citigroup / Citibank	PREPA underwriter; $250M fuel/power credit line, $249.1M outstanding June 2013	Affected financial institution	Economic exposure to PREPA restructuring	What exposure did Treasury identify when designing PROMESA?

Antonio Weiss	Former Lazard Global Head of Investment Banking; Senate-confirmed nomination withdrawn	Treasury Puerto Rico point person; principal PROMESA witness	Lazard/Puerto Rico debt exposure and related funds	Were ethics/recusal issues evaluated and disclosed?
Stephen Campbell	Former Lazard investment banker	Joined Treasury Puerto Rico team June 2015	Former-employer Puerto Rico financial interests	What work did he perform and what conflicts were screened?
Adam Chepenik	Treasury Senior Policy Advisor / state-local finance official	2013 PREPA analysis; later Puerto Rico/PROMESA technical role	22-page Treasury-to-SEC PREPA communication	Why was the PREPA-specific analysis not identified in the public PROMESA presentation?

Sources Added for Treasury Conflict/Omission Section

- U.S. Treasury, Antonio Weiss testimony before House Natural Resources on the PROMESA discussion draft, Apr. 13, 2016.
- House Report 114-602, explaining that Treasury testimony supported the restructuring mechanisms in Titles III and VI.
- Official PREPA Power Revenue Bonds Series 2012-A and Series 2013-A offering statements identifying Citigroup as an underwriter and the Citibank revolving credit relationship.
- IEEFA, reporting that Citigroup participated in PREPA's underwriting team for every PREPA bond issuance from 2010 through 2013.
- Los Angeles Times / Washington Post, Jan. 2015, reporting Weiss's withdrawal from the Senate-confirmed Treasury nomination and appointment as Counselor to Secretary Lew.
- U.S. Treasury biography of Antonio Weiss identifying him as former Global Head of Investment Banking at Lazard.
- Contemporaneous June 2015 reporting that former Lazard banker Stephen Campbell joined Treasury's Puerto Rico team.
- The Guardian and Hedge Clippers, Sept. 2015, documenting the contemporaneous recusal controversy and reported Lazard/Puerto Rico debt interests.
- FOIA-produced Aug. 2, 2013 Treasury-to-SEC email in the Lawless evidentiary archive; opening email from Adam Chepenik.
- Professional biographies of Adam Chepenik describing his Treasury state/local finance role and later technical assistance to Congress in drafting PROMESA.

5E. SEC Leadership After PROMESA — Gary Gensler / Goldman Sachs / FOIA-Era PREPA Records

Background and financial-sector relationship. Gary Gensler served as SEC Chair from April 17, 2021 through January 20, 2025. Before entering government, he spent 18 years at Goldman Sachs, became a partner, headed the firm's Media Group, led fixed-income and currency trading in Asia, and became co-head of Finance with responsibility for worldwide Controllers and Treasury functions. He later served as Treasury Under Secretary for Domestic Finance and as CFTC Chair before assuming leadership of the SEC.

Why his tenure matters to PREPA. Gensler did not preside over the original 2013 PREPA bond issuance or the enactment of PROMESA. His relevance is different: he inherited the SEC after the PREPA investigative record, B-02949, whistleblower materials, subpoenas, and interagency records had already accumulated, and he became Chair just as FOIA requests and related litigation began forcing the agency to locate and process the historical PREPA/Lawless record.

FOIA chronology. Gensler was sworn in on April 17, 2021. The SEC received Lawless's FOIA request for internal communications concerning him on May 19, 2021—approximately one month later. In its September 24, 2021 response, the SEC quoted Lawless's request for records concerning the whistleblower, criminal complaints, and the hundreds of emails, faxes, and Federal Express packages concerning Puerto Rico

bankruptcy and alleged bond fraud. The SEC stated that processing involved potentially voluminous responsive records, records located in geographically separated components, and consultation with one or more other offices having a substantial interest in the determination or subject matter.

Investigative significance. The key question for the Gensler period is therefore what information reached the Chair's office about the scope and sensitivity of the PREPA record once the SEC was required to search for it. The currently assembled evidence does not establish that Gensler personally reviewed B-02949, the Lawless submissions, or the agency's litigation positions. It does establish a period in which his SEC was actively processing requests that implicated a substantial historical investigative record.

Goldman-related conflict question. Because Gensler spent 18 years at Goldman Sachs and held senior positions there, investigators should obtain the ethics and recusal records applicable to any Puerto Rico/PREPA matter involving Goldman or related former-employer interests. The purpose is not to infer misconduct from prior employment, but to determine who had decisional authority over PREPA-related enforcement, FOIA, and litigation matters when a senior official had a significant former-employer relationship.

Lost text-message records. The SEC later notified the National Archives that some text messages from Gensler's SEC-issued phone were lost for the period October 18, 2022 through September 6, 2023. The SEC OIG subsequently concluded that avoidable information-technology errors caused the inadvertent loss. There is presently no evidence that the missing texts concerned PREPA, Puerto Rico, B-02949, Lawless, or the related litigation. Because the loss overlaps the broader FOIA/litigation period, however, any records-reconstruction effort should determine whether PREPA-related searches, litigation holds, or responsive custodians encompassed those missing messages.

Gensler-Era Records Needed

- All Chair's Office briefings, referral memoranda, email, and calendar entries concerning PREPA, Puerto Rico, B-02949, Richard Lawless, the relevant FOIA requests, or related litigation from April 17, 2021 through January 20, 2025.
- All SEC ethics opinions, recusal lists, screening arrangements, and waivers applicable to Gensler concerning Goldman Sachs and Puerto Rico/PREPA matters.
- FOIA-processing notes identifying the SEC offices described in September 2021 as having a 'substantial interest' in the requested records.
- Records showing which SEC officials approved search scope, withholding/redaction positions, declarations, litigation support, or referrals involving the PREPA/Lawless record.
- Records-preservation and litigation-hold notices covering PREPA, B-02949, Lawless, and related FOIA litigation.
- Any recoverable counterpart copies of Gensler communications from October 18, 2022 through September 6, 2023 held by other SEC custodians, if those communications are responsive to PREPA-related searches.

Gensler Evidentiary Assessment

Supported: Gensler's extensive Goldman Sachs background; his SEC chairmanship during 2021–2025; the May 2021 Lawless FOIA request; the SEC's acknowledgment of potentially voluminous records and inter-office consultation; and the later documented loss of some Gensler text messages during 2022–2023.

Not yet established: that Gensler personally knew of or directed the handling of B-02949; that Goldman influenced SEC handling of PREPA; that any missing Gensler texts concerned PREPA; or that Gensler personally approved any challenged litigation or FOIA representation.

6. Federal PREPA Knowledge Predated PROMESA

The evidence archive identifies multiple strands of federal PREPA knowledge that predate the 2016 legislative process.

Evidence	What the record describes	Why it matters
2013 Treasury-to-SEC analysis	PREPA financial condition, debt-service coverage, receivables, subsidies, liquidity, and dependence on continued borrowing.	Shows Treasury/SEC awareness of PREPA-specific financial issues years before PROMESA.
SEC Matter B-02949	Enforcement matter concerning PREPA 2013 Power Revenue Bonds.	Shows SEC investigative activity concerning the bonds.
SEC subpoena categories	Debt-service capacity, receivables, CILT/subsidies, solvency, continuing disclosure, offering assumptions.	Substantially overlaps issues later relevant to bond validity and restructuring.
Whistleblower processing	Formal processing, investigative routing/preservation, requests for financial analysis.	Contradicts any simple narrative that no substantive governmental review existed.
SEC-DOJ communications	Records involving SEC personnel and DOJ Antitrust contact Samson Asiyanbi, including DOJ review references.	Establishes interagency contact concerning the PREPA matter.

The narrow point is not that these records prove the underlying bond-fraud allegations. They establish that the Executive Branch possessed and circulated materially relevant PREPA information before and during the period in which Treasury was helping Congress formulate the federal response.

7. The Congressional Disclosure Question

The central oversight question is therefore not whether Congress was generally aware that Puerto Rico was in fiscal distress. It plainly was. The question is whether Congress was informed of the materially more specific federal record concerning PREPA.

- Did Treasury's PROMESA briefing books disclose the 2013 Treasury-to-SEC PREPA analysis?
- Did Treasury tell the House Natural Resources Committee that SEC Enforcement Matter B-02949 existed?
- Did congressional testimony disclose that the SEC had sought evidence concerning PREPA debt-service capacity, receivables, subsidies, solvency, continuing disclosure, and offering assumptions?
- Did Treasury disclose SEC-DOJ investigative communications concerning PREPA?
- Did committee members receive the whistleblower and investigative information before relying on Treasury’s description of the causes and proposed solution to Puerto Rico’s debt crisis?

The available public congressional record and Treasury testimony reviewed for this report emphasize the unsustainable aggregate debt, liquidity crisis, creditor litigation, restructuring authority, and oversight. They do not themselves demonstrate that the PREPA-specific investigative record described above was presented to Congress.

8. Why Omission of PREPA-Specific Information Could Have Been Material

PROMESA was premised on a congressional diagnosis of Puerto Rico’s fiscal crisis and a statutory solution built around restructuring and oversight. PREPA was one of the major public debt issuers ultimately placed within that framework.

If Congress had been told that federal regulators had already developed evidence potentially calling into question bond disclosures, debt-service assumptions, solvency representations, or continuing-disclosure practices, that information could have affected at least four legislative judgments:

- whether the crisis was principally one of excessive public borrowing versus potentially actionable securities misconduct;
- whether creditor claims should enter a restructuring process without first resolving threshold validity or fraud issues;
- whether federal investigative findings should be preserved, disclosed, or referred before imposing a broad restructuring framework;
- whether special protections, investigative mechanisms, or disclosure requirements should have been included in PROMESA.

This is a materiality argument, not a claim that Congress necessarily would have rejected PROMESA.

9. Later SEC and DOJ Conduct as Potential Corroborating Evidence

The later-produced Curtin records add a second phase to the influence theory. The user's consolidated evidentiary materials identify 39 challenged government statements or characterizations across related litigation. The report appropriately distinguishes those statements from 39 separate crimes: some are advocacy, omissions, shorthand, or disputed characterizations.

What the later record does establish, according to the docketed evidentiary materials, is that the Government possessed contemporaneous corroborating records while related matters were later characterized as unsupported. The 447-page Curtin production documents whistleblower processing, investigative work items, requests for analysis, preservation, and SEC-DOJ communications.

The counsel-notice chronology also matters. A third-party review in the evidence archive states that SEC/PREPA investigative information and the existence of SEC-DOJ communications were placed on a federal docket and served on DOJ litigation counsel in May and June 2022. This does not prove what any attorney actually knew, but it makes the question objectively discoverable through DOJ litigation files and internal communications.

Investigative significance: If federal agencies repeatedly defended positions that prevented discovery or merits adjudication after receiving notice of records that materially complicated those positions, investigators could examine whether the conduct reflected ordinary litigation defense, institutional compartmentalization, or a broader effort to preserve the PROMESA-era narrative and restructuring framework.

10. The Political-Influence Theory: Evidence For and Against

Evidence supporting the theory	Evidence limiting the theory
Major financial interests had economic stakes in Puerto Rico debt and restructuring.	Campaign contributions are lawful and common.
Financial-sector political spending and lobbying were extraordinarily large.	High-dollar recipients voted both YEA and NAY on PROMESA.
Important PROMESA gatekeepers were large financial-sector recipients.	Broad financial-sector totals are not the same as PREPA-specific donor totals.
SIFMA and creditor-side interests actively advocated on Puerto Rico/PROMESA.	Policy advocacy does not establish corrupt influence.
Treasury directly worked with Congress to develop and refine PROMESA.	Treasury had legitimate policy reasons to seek a restructuring framework.
Treasury/SEC possessed PREPA-specific analysis before PROMESA.	Current record does not establish which members of Congress saw or were denied each record.
SEC records document B-02949, whistleblower processing, subpoenas, and SEC-DOJ communications.	Agency investigation does not establish underlying securities fraud.

Later litigation record contains disputed government statements alongside later-produced corroborating records.	Direct proof of political instruction to SEC/DOJ/Treasury has not yet been produced.

11. The Missing Causal Bridge

The theory becomes substantially stronger if investigators find evidence connecting congressional financial relationships to agency conduct. The most important missing evidence is not more contribution data. It is communications.

- Emails, texts, memoranda, or meeting notes between congressional leadership/staff and Treasury, SEC, or DOJ concerning PREPA investigations, bond validity, whistleblower submissions, or disclosure to Congress.
- Treasury briefing books and draft testimony showing whether PREPA-specific investigative information was included, removed, softened, or excluded.
- SEC or DOJ communications discussing congressional sensitivities, major creditors, underwriting banks, PROMESA, or the consequences of enforcement action for the restructuring.
- Bank, trade-association, hedge-fund, insurer, or law-firm communications with members/staff followed by government contacts concerning the same PREPA issues.
- Evidence that officials were instructed to defer, narrow, close, withhold, or characterize investigative information for political or legislative reasons.
- Board-seat, employment, stock, compensation, fundraising, or other benefit evidence temporally linked to identifiable official acts, if such records exist.

Those are the records capable of converting an inference of political protection into evidence of an agreement or corrupt purpose.

12. Recommended Congressional / Inspector-General Production Requests

- All Treasury emails, memoranda, briefing books, draft testimony, talking points, and congressional-preparation files concerning PREPA, B-02949, Lawless, PREPA 2013 bonds, debt-service coverage, CILT, receivables, subsidies, solvency, and continuing disclosure from 2013 through June 30, 2016.
- All Treasury communications with House Natural Resources members/staff, House leadership, Senate leadership, and financial-industry representatives concerning PREPA or PROMESA.
- All SEC records concerning Matter B-02949, including the investigative order, subpoenas, closing memoranda, internal routing, Enforcement communications, and interagency communications.
- All SEC-DOJ communications concerning PREPA, Lawless, B-02949, Morgan Stanley or other subpoena recipients, and any decision whether to investigate, refer, prosecute, close, or disclose.
- All DOJ records concerning PREPA-related referrals or reviews, including Antitrust communications and later litigation-counsel requests for agency factual support.
- All congressional visitor logs, meeting calendars, correspondence, and lobbying contacts involving PREPA underwriters, bond insurers, hedge funds, SIFMA, relevant counsel, and their lobbyists during the PROMESA drafting period.
- All versions of Treasury and committee talking points comparing Puerto Rico’s crisis narrative with known PREPA-specific investigative information.

13. Findings

- Finding 1 — Financial motive and access are documented. Major financial institutions and securities interests had both economic stakes in Puerto Rico debt and extraordinary political/lobbying capacity.

- Finding 2 — Political gatekeepers with substantial financial-sector support controlled key PROMESA stages. This supports scrutiny of influence but does not prove corrupt action.
- Finding 3 — Treasury was a co-developer and principal Administration advocate of the congressional solution, not a detached observer.
- Finding 4 — Treasury, SEC, and DOJ-related records establish PREPA-specific federal knowledge and interagency activity predating or overlapping the PROMESA process.
- Finding 5 — The public congressional record reviewed here does not itself show that the specific SEC investigative record was disclosed to Congress.
- Finding 6 — Later SEC/DOJ records materially complicate categorical claims that the PREPA allegations were unsupported and create a separate question about institutional preservation of earlier positions.
- Finding 7 — Taken together, motive, access, legislative control, executive-branch knowledge, interagency contacts, and later protective litigation outcomes create a reasonable basis for investigating political influence.
- Finding 8 — The current evidence does not yet establish the direct instruction, agreement, or quid pro quo needed to state that politicians actually ordered federal agencies to protect bank contributors.

14. Conclusion

The strongest version of the political-influence claim is not that campaign contributions alone caused PROMESA. The record is more complex and, in important respects, more consequential.

The evidence shows a convergence of interests: major financial institutions and securities interests had enormous financial exposure and political reach; important congressional gatekeepers received substantial financial-sector support; industry and creditor interests were actively lobbying over Puerto Rico; Treasury worked directly with congressional committees to design and promote PROMESA; and Treasury, SEC, and DOJ-related records indicate that the Executive Branch possessed a substantially more detailed PREPA evidentiary record than appears in the public legislative narrative.

The later litigation record supplies a potential continuation theory: after PROMESA established the restructuring framework, later-produced government records allegedly contradicted or materially complicated factual positions used to defeat litigation and prevent discovery into the underlying PREPA issues. If proven intentional and connected to political direction, that sequence could support a much more serious inference of institutional protection.

But the report should stop at the evidentiary line. No document presently identified here contains a direct order from Schumer, Ryan, McConnell, Duffy, Bishop, or another politician instructing SEC, DOJ, or Treasury to conceal PREPA evidence or protect a contributor. That missing causal bridge is why the proper conclusion is that the claim is sufficiently grounded to warrant subpoenas and investigation—not that the corrupt agreement has already been proven.

Bottom line: The current record supports a serious investigation into whether politically powerful recipients of financial-sector support helped create and preserve a federal restructuring framework favorable to institutional financial interests and whether that political environment influenced the Executive Branch's handling and disclosure of PREPA-related evidence.

15. Source and Record Guide

1. U.S. Treasury, Testimony of Counselor Antonio Weiss before House Natural Resources, Feb. 25, 2016.
2. U.S. Treasury, Testimony of Counselor Antonio Weiss on PROMESA discussion draft, Apr. 13, 2016.
3. House Report 114-602, Puerto Rico Oversight, Management, and Economic Stability Act.
4. U.S. Treasury statements by Secretary Jacob Lew, May 19, June 9, and June 29, 2016.

5. House Clerk Roll Call 288, H.R. 5278, June 9, 2016.
6. Senate Roll Call Vote 116, June 29, 2016.
7. Americans for Financial Reform, 2015–2016 Wall Street political-spending analysis.
8. Center for Public Integrity, Schumer's road to the top greased by donations to colleagues (2015).
9. FEC/ProPublica Itemizer records for Friends of Schumer, DSCC, NRSC, Goldman Sachs PAC, SIFMA PAC, Morgan Stanley PAC, JPMorgan PAC, and Managed Funds Association PAC.
10. SIFMA Asset Management Group submission/support for PROMESA.
11. Senate Lobbying Disclosure Act records concerning BlueMountain and Assured Guaranty.
12. Congressional Oversight Request — Treasury Knowledge of PREPA Bond Risks Before and During PROMESA (user evidentiary archive).
13. Memorandum Regarding Federal Records (user evidentiary archive).
14. SEC FTCA Claim with Indexed Exhibits — Focused SEC-DOJ primary-source appendix (user evidentiary archive).
15. Master Evidentiary and Procedural Record — Third-Party Review (user evidentiary archive).
16. Lawless 01637 Exhibits D-H — Five Evidentiary Memoranda (user evidentiary archive).
17. Docketed Ninth Circuit Government Evidence, No. 25-6000, Dkt. 53.1 (user evidentiary archive).
18. Exhibit A — Docketed Bankruptcy Fraud Evidence, PROMESA docket (user evidentiary archive).

Additional Notice Sources

- Court filing, Case 5:21-cv-01637-JWH-SP, Document 100 (May 25, 2022), stating that Amazon shipping records verified distribution of Capitol Hill's Criminal Underground to every U.S. Senator and chiefs of staff, and that Federal Express/UPS receipts verified distribution of the Puerto Rico report and video links to every U.S. Senator.
- SEC FOIA correspondence, Sept. 24, 2021, quoting Lawless's description of hundreds of emails, faxes, and Federal Express packages concerning Puerto Rico bankruptcy and bond fraud sent to the SEC.
- Capitol Hill's Criminal Underground, Richard Lawless, publication date 2019; later distribution is therefore post-PROMESA notice rather than pre-vote notice.

Targeted FOIA / Archival Requests for Pre-Vote Email Notice

- Treasury: all emails, attachments, calendar invitations, memoranda, and forwarded communications between January 1 and June 30, 2016 involving Paul Ryan, Kevin McCarthy, Sean Duffy, Rob Bishop, Nancy Pelosi, Mitch McConnell, Harry Reid, Charles Schumer, their staffs, or House Natural Resources staff, with search terms PREPA, Puerto Rico, Lawless, B-02949, HR 1049, bond fraud, debt-service coverage, CILT, receivables, subsidies, solvency, continuing disclosure, and PROMESA.
- SEC: the same congressional-correspondence search, plus records linking those names or offices to PREPA Matter B-02949, whistleblower submissions, subpoenas, Sue Curtin, Morgan Stanley, and interagency referrals.
- DOJ: the same congressional-correspondence search, including Antitrust Division, U.S. Attorney, Office of Legislative Affairs, and litigation-support records that may preserve communications or forwarded materials concerning PREPA and the PROMESA period.
- Congressional archives / office records: preserved inboxes, constituent-correspondence systems, fax logs, document-management systems, committee records, and staff files for the same officials and search terms. These records are not obtained through FOIA and require archival, office, committee, or compulsory production routes.

Additional Sources — Gary Gensler

- SEC, Gary Gensler biography: SEC Chair Apr. 17, 2021–Jan. 20, 2025; Goldman Sachs partner, Media Group head, Asia fixed-income/currency trading leader, and co-head of Finance.
- SEC, Apr. 17, 2021, Gary Gensler sworn in as SEC member and Chair.

- SEC FOIA correspondence dated Sept. 24, 2021 concerning Request No. 21-00159-FOPA, reproduced in the Lawless evidentiary archive.
- SEC, Unauthorized Disposition Notice to NARA, June 27, 2025 / posted Sept. 4, 2025, concerning loss of some Gensler text messages from Oct. 18, 2022–Sept. 6, 2023.
- SEC OIG, Special Review Report No. 587 (Sept. 3, 2025), finding avoidable IT errors caused the inadvertent loss of Gensler text messages.